MASTER SERVICES AGREEMENT

THIS AGREEMENT (hereinafter referred to the "Agreement") is made this __ day of _____, 2016 by and between

BENNETT, COLEMAN AND COMPANY LIMITED, a company incorporated under the Companies Act, 1956, having its registered office at The Times of India Building, Dr. D.N. Road, Mumbai 400 001, CIN No. U22120MH1913PLC000391 hereinafter referred to as the 'BCCL/ Customer' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the ONE PART

AND

_____, a company incorporated under the Companies Act, 1956, having its registered office at _____, hereinafter referred to as the 'Service Provider' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the OTHER PART

Both 'Customer' and 'Service Provider' are hereinafter referred singly as Party and collectively as Parties.

WHEREAS:

A. The Service Provider is in the business of _____.

B. Customer is engaged *inter-alia* in the business of printing, publishing and distributing various newspapers in various parts of India, including the 'Times of India' English daily newspaper.

C. Customer being in need of said services provided by the Service Provider for the purposes of its business has approached the Service Provider and Service Provider has agreed to provide its services as mentioned hereunder.

D. This Agreement sets out the terms and conditions on which the Service Provider provides and Customer avails the said services for its business purposes.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. PURPOSE

a. This Agreement sets forth the terms and conditions under which Service Provider is to provide and Customer shall accept and pay for business process outsourcing services as specified below.

2. NATURE AND SCOPE OF SERVICES TO BE PROVIDED BY SERVICE PROVIDER:

a. Service Provider will deliver such business process outsourcing services ("SERVICES") as may be specified in Statement of Work(s), which are separately annexed hereto as Exhibit(s).

b. All SERVICES ordered by Customer will be specified on such Exhibit(s), the terms and conditions of which will expressly be made an integral part of this Agreement, and will define the scope of the SERVICES or service, the charges, the terms and conditions of payment, and any other elements of agreement deemed relevant by the parties. In the event of any conflict or inconsistency between the terms of this Agreement and the Exhibit(s), the terms

of the Exhibit(s) will prevail. Service Provider and Customer shall each retain a signed copy of this Agreement and each Exhibit(s) including all other Exhibits, issued on timely basis.

c. For each phase of the SERVICES ordered by Customer, Customer shall provide to Service Provider a specification, which will describe in detail the services to be provided. Such specification shall be incorporated in the Exhibit(s).

d. Customer expressly agrees that Service Provider may subcontract or assign any or all of its obligations under this agreement to any Service Provider affiliated entity or subsidiary, in which case such assignee or subcontracted party shall be the primary obligor and shall adopt this Agreement to continue to perform the obligations as stipulated in this Agreement and the respective Exhibits.

3. CUSTOMER'S OBLIGATION

a. Customer shall use reasonable endeavours to ensure that all its personnel who are assigned to work with Service Provider are appropriately skilled to carry out the tasks allocated to them. Furthermore, they will co-operate with, and promptly provide such materials information and assistance to Service Provider as may be reasonably requested from Customer by Service Provider for its performance of its obligations under the Agreement.
b. Where Customer requires Service Provider to provide the Services on Customer's site(s), Customer shall, at no charge to Service Provider, allow access to the Site(s) to the extent necessary to provide the Services and make available, as may be reasonably required, office facilities, including office-computing facilities, to be used by Service Provider solely for the purpose of performing the Services.

4. CONFIDENTIAL INFORMATION

(a) Each Party (the "Recipient" for the purpose of this clause) acknowledges that information supplied by the other (the "Owner" for the purposes of this clause) that has, or will, come into its possession or knowledge in connection with the performance of the Services and otherwise in connection with this Agreement, is the confidential and/or proprietary information of the Party Owner including (a) the existence and terms of this Agreement and (b) any information which is of a commercially sensitive nature or which relates to the business, plans, markets, products, rates, clients or licensees, finances or requirements of either Party but excluding any information that is either already in the public domain other than by a breach of this Agreement or is lawfully know to the Recipient prior to receipt from the Owner ("Confidential Information"). Unless otherwise indicated by Customer or Service Provider in writing, to the other any information received by either Party, respectively, from the other which may be relating to either Parties business, methods, customers and potential customers, suppliers, commercial relationships, software, know-how and training shall be deemed to be Confidential Information.

(b) The Recipient shall:

(i) keep Confidential Information strictly confidential;
(ii) only use Confidential Information for the purpose of performing its obligations under this Agreement; and
(iii) not divulge any Confidential Information to any person except to its own employees, self-employed sub-contractors and advisers and then only to the extent to which those employees self-employed sub-contractors and advisers need to know the same. If the Recipient is required to disclose any Confidential Information by any court of competent jurisdiction or any regulatory or governmental authority then it will first notify the Owner of the requirement and make the relevant authority aware of its responsibility of confidentiality to the Owner.

(iv) The provisions of this clause 3 shall not apply to:

a) any information which is or enters into in the public domain otherwise than by breach of this Agreement;

b) information lawfully obtained from a third Party who is free to divulge the same.

c) information that was already known to the recipient prior to disclosure under this Agreement and was not previously acquired by the recipient from the disclosing Party under an obligation of confidentiality or non-use in favour of the disclosing Party;

d) information that can be shown by documentary evidence to have been created by one Party to this Agreement independently from Services carried out under this Agreement.

e) Any information required to be disclosed under laws or regulatory orders

(v) The Recipient undertakes to ensure that its employees are aware of and comply with the provisions of this clause and will indemnify the Owner against any loss or damage which the Owner may sustain or incur as a result of the Recipient failing to comply with such undertaking.

(vi) The Recipient without prejudice to the foregoing shall take all such other steps as shall from time to time be reasonably necessary to protect and prevent unauthorised disclosure of the Confidential Information.

(vii) The Recipient shall promptly notify the Owner if it becomes aware of any breach of confidence by any person to whom the Recipient may have divulged all or any part of the Confidential Information and shall give the Owner all reasonable assistance in connection with any proceedings, which the Owner may institute against such person for breach of confidence.

(viii) The foregoing obligations as to confidentiality shall remain in full force and effect for a period of two (2) years upon the termination of any Licence or this Agreement.

(ix) All customer names and prospective customer names, telephone numbers, addresses and contacts generated by Customer ("Customers Associated Documentation") shall remain sole property of Customer and may not be used by Service Provider except for the Services it provides under this Agreement. During such period until any of Customers Associated Documentation are under Service Provider's possession, custody or control, Service Provider shall:

i. effect all reasonable security measures in accordance with reasonable industry practice to safeguard the Customers Associated Documentation from theft, access or use by any unauthorised person;

ii. not make the Customers Associated Documentation or information conveyed to Service Provider by training available to any other persons except Service Provider's own employees and contractors and then only to those employees and contractors who need to know the same;

iii. retain the Customers Associated Documentation and all copies thereof under Service Provider's effective control; and

iv. maintain a full and accurate record of Service Provider's copying and disclosure of the Customers Associated Documentation and shall produce such record to Customer on request from time to time and make it available for

inspection on reasonable notice during normal office hours at Service Provider's premises when requested by Customer**.**

In Alternative

Except for disclosures, required by any law or required to be made to Governmental agencies:

a) Service Provider shall not disclose any information pertaining to this Agreement or with respect to the business of Customer unless authorised in writing; and
b) Service Provider shall not disclose or use any details of any Customer that may come to its knowledge and all related data shall be kept confidential.

The parties agree that this clause shall survive for two years after the termination or expiry of this Agreement.

5. PROPRIETARY RIGHTS

(a) All right, title, and interest in and to any computer programs, program specifications, systems, data, or materials owned by Service Provider prior to the execution of this Agreement and used by Service Provider in the performance of this Agreement shall remain the exclusive property of Service Provider.

(b) The Customers Associated Documentation and the copyright and other intellectual property rights of whatever nature in the Customers Associated Documentation are and shall remain the property of Customer.

(c) Service Provider shall notify Customer promptly if Service Provider becomes aware of any unauthorised use of the whole or any part of the Customers Associated Documentation by any person.

(d) Service Provider will permit Customer to check the use of the Customers Associated Documentation by Service Provider upon reasonable request at a reasonable time and agrees that Customer, its employees and agents may enter any premises of Service Provider for such purpose on reasonable notice during normal office hours once per quarter.

(e) Except to the extent and in the circumstances expressly required to be permitted by Customer by law and for the purpose of carrying out its obligations under this Agreement, Service Provider shall not alter, modify, adapt, create derivative work or translate the whole or any part of the Customers Associated Documentation in any way whatever. Both the parties agree that Service Provider shall be free to provide services to other clients and the Customer shall be free to enter into a similar agreement with any other service provider in the ordinary course of business,.

6. WARRANTY

Service Provider warrants that any SERVICES to be provided under the terms of this Agreement shall:

(a) be in accordance with the standards agreed upon in the Exhibit(s) and in accordance with good industry practice i.e. the exercise of the degree of skill, diligence, prudence and foresight which would reasonably be expected from a skilled and experienced person engaged in the same type of undertaking in the industry under the same or similar circumstances; and

(b) Where SERVICES are being done on a Time and Material basis, Service Provider shall exercise its best efforts to furnish competent personnel to fulfil its obligations. Customer shall have the right, within a two-week period, to

request removal of any Service Provider personnel whom Customer deems to be unsatisfactory. On such requests, Service Provider shall each use its best efforts to provide substitutes who have appropriate skills and training.

(c) Be in accordance with all applicable laws, ordinances, codes and regulations in the performance of its obligations under this Agreement..

(d) Other than as specified in this paragraph V Service Provider does not warrant that any Program shall be error-free or abstained from any defects.

7. EXCLUSION OF OTHER WARRANTIES

Except for the warranty set forth above in Section V, Service Provider makes no other warranties, express or implied, of any type or description, including any warranties of merchantability or fitness for any particular purpose with respect to any of the SERVICES to be provided or the results, if any, to be obtained from such SERVICES.

8. LIMITATION OF LIABILITY

(a) . In case the Customer suffers losses due to the negligence of the Service Provider, the Service Provider shall be liable to make good the losses to the Customer at the discretion of the Customer.

(b) Subject to clause (a) above, Service Provider's cumulative liability towards direct damages shall not exceed the amount of fees paid by Customer under any Exhibit, at such point of time when any purported liability arises (subject to the maximum of total amount of fees paid to Service Provider under that particular Exhibit during the preceding 6 months period from the date of occurrence of any such event of breach or default) except for any liabilities under Indemnities given under clause 8 of this Agreement .

9. INDEMNITY

(a) Service Provider shall indemnify and keep indemnified Customer, its directors, officers, employees and agents against all losses (excluding loss of profits), damages, claims, demands and expenses (including reasonable legal expenses) resulting from any breach of warranty whereby it is established that, any SERVICES or Services provided by Service Provider to Customer infringes the intellectual property rights or any obligations in respect of Confidentiality provisions, provided that in the event of any third party claim Service Provider is promptly notified by Customer and is given complete control of the conduct of such claim and Customer does not admit or settle the claim without Service Provider's prior written consent and that Customer gives Service Provider all reasonable assistance in contesting with any such claim.

(b) In addition, Service Provider shall indemnify Customer for personal injury including death or damages to tangible, personal or real property caused directly by the negligent acts or omission of Service Provider personnel.

(c) Customer shall indemnify Service Provider for personal injury including death or damages to tangible, personal or real property caused directly by the negligent acts or omission of Customer personnel.

(d) Customer shall be liable for and hereby agrees to defend, release, discharge, fully indemnify, and hold Service Provider, it directors, officers and agents harmless from and against any and all claims, demands, damages, liabilities, actions, causes of actions, loss, cost, and expense of any nature whatsoever (including investigation costs and expenses and attorneys' fees and expenses incidental thereto) by reason of any misstatements or misleading statements or insufficient data provided to Service Provider, including but not limited to the

list of end users as provided in clause to Service Provider in clause 3 (g) of the Agreement or it is noticed at any time that Customer does not have the necessary licenses required under any statute nor has procured any licenses required to be so procured in any state for telemarketing calls in any state where such activity is to be carried on or otherwise arising out of or attributed to the activities or operations of Customer pursuant to this Agreement.

10. NON-SOLICITATION OF EMPLOYEES

a) During the duration of this Agreement and for the period of 1 (one) year thereafter, each Party shall not, without the prior written consent of the other Party solicit, entice away or hire (or seek or attempt to solicit, entice away or hire) from the employment of a Party any person employed by the other Party (or any person who has been so employed in the preceding 6 (six) months). Without prejudice to any other rights or remedies any Party may have in the circumstances, if Customer breaches this provision then Customer shall pay Service Provider liquidated damages in an amount equal to 12 (twelve) times the monthly gross salary paid to the person concerned prior to the occurrence of the breach.

b) Each Party acknowledges that any breach of this Section IX would cause irreparable damage for which any remedies at law would be inadequate and that such Party shall have the right to obtain such injunctive and other equitable relief from a court of competent jurisdiction as may be necessary or appropriate to prevent any violation of this Section IX.

11. BILLING AND PAYMENT OF INVOICES

(a) Service Provider shall prepare monthly invoices for the SERVICES performed, pursuant to the fees/charges mentioned in respective Exhibit(s). Invoices shall be sent to Customer and Customer shall pay the invoiced amount within 30 days from the date of invoice.

(b) If any invoice is not paid when due, Service Provider may, at its option, and in addition to any other remedies: (i) suspend performance of the SERVICES and withdraw its personnel and/or (ii) charge interest on the unpaid balance at 12.0% per annum above current lending base rate computed from the due date of invoice until date of payment, save where Customer has withheld payment through a dispute over performance the Arbitration process (section XIII) shall immediately be invoked. Before undertaking any of the above steps, Service Provider will give Customer written notice of its failure to pay and ten (10) calendar days beyond the notice period, to cure the breach. If the breach is not corrected by the date specified in said notice Service Provider may, at its option, terminate the Agreement as provided herein.

(c) Any value added tax, services tax, use tax or any other applicable taxes or levies on the services (SERVICES) shall be invoiced by Service Provider as applicable under law and Customer shall pay the same alongwith payment of service charges or fees.

(d) Service Provider shall be entitled to reimbursement of any expenses that may be previously authorised by Customer and reasonably incurred by Service Provider, within 30 days of production of actual invoices or receipts for such expenses.

12. TERM AND TERMINATION

(a) This Agreement shall commence as of the date first written above and shall remain in effect for a period of …. (…..) years or until it gets terminated as provided herein, whichever is earlier.

(b) This Agreement shall be subject to termination in the event of occurrence of following events:

(i) Either Party may terminate this Agreement without cause and for any reason on one hundred twenty (120) days written notice to the other Party.

(ii) Customer shall also have the option to terminate this Agreement for cause in which event Customer shall provide sixty (60) days written notice to Service Provider specifying the breach and unless the breach is corrected to Customer's reasonable satisfaction within the notice period, then this Agreement shall terminate at the end of the notice period.

(iii) Service Provider may terminate this Agreement in the event of a breach by Customer of any of the terms and conditions hereof on sixty (60) days prior written notice specifying the breach and unless the breach is corrected to Service Provider's reasonable satisfaction within the notice period, then the Agreement shall terminate effective at the end of the notice period. In the event of termination of this Agreement for any reason whatsoever, Customer shall pay Service Provider the amount due for all SERVICES delivered and SERVICES performed (including work in progress) up to the date of notice of breach. With respect to breach for non-payment of invoices, Service Provider may at its option, without prejudice to its other rights and remedies, terminate this Agreement upon the expiration of the period of cure specified in Paragraph X(b).

(iv) This Agreement shall also be terminated if either Party becomes insolvent, seeks protection under applicable bankruptcy statutes or in the event either Party makes an assignment of its assets for the benefit of creditors.

(v) Upon termination of this Agreement, each Party will return to the other any materials owned by such Party and upon payment of applicable charges, Service Provider shall deliver any work in progress as of the date of termination.

(vi) Any termination of this Agreement shall be without prejudice to any rights or obligations of either Party arising or existing up to the effective date of such termination, or to any rights or obligations of either Party which are intended by this Agreement to survive for a period of two (2) years upon the termination of this Agreement.

13. FORCE MAJEURE

If either Parties' performance of this Agreement or any obligation hereunder is prevented, restricted or interfered with by causes beyond such Parties's reasonable control including but not limited to, acts of God, fire, explosion, any binding and valid law, order or regulation of the concerned Governments, state or local government or any civil or military authority; or by national emergencies, wars or strikes, then Service Provider and Customer shall not be liable to the other for any loss or damage which may be suffered as a result, provided the Party suffering an event of Force Majeure notifies the other Party of same as soon as possible but not later than ten (10) days of the occurrence of the event of Force Majeure. The parties shall use their best efforts under the circumstances to avoid and remove such causes of non-performance and shall proceed to perform with reasonable dispatch whenever such causes are removed or cease.

14. GOVERNING LAW

This Agreement shall be governed by the laws of India and shall be subject to the exclusive jurisdiction of courts in Mumbai only.

15. NOTICES

All notices, requests, demands, or directions to any Party to this agreement by another Party hereto shall be in writing and deemed given five (5) business days after sent by registered mail, postage prepaid, courier service, telex, telegram, or cable addressed as follows:

(a) To Service Provider:

ATTN: Mr.

(b) To Customer

ATTN: Mr.

BENNETT, COLEMAN & CO. LTD
The Times of India Building,
Dr. D. N. Road, Mumbai 400 001,

or to such other address as may be stated by one Party to the other in a notice given in the same manner herein provided.

16. . ASSIGNMENT

(a) Service Provider may not assign its rights, interests or obligations under this Agreement, in whole or in part, to any third party, except a Service Provider affiliated entity or parent, subsidiary, without the prior written consent of Customer .
(b) Customer may not assign its rights, interests or obligations under this Agreement, in whole or in part, to any third party except a Customer affiliated entity without the prior written consent of Service Provider.

17. SUCCESSORS AND ASSIGNS

This Agreement shall be binding upon and inure to the benefit of the parties hereto, their respective administrators, successors, and permitted assigns. Nothing herein, except as specifically provided into this Agreement, is intended to confer upon any person, other than the parties hereto and their respective administrators, successors, and permitted assigns, any rights, remedies, obligations or liabilities under or by reason of this Agreement.

18. INDEPENDENT CONTRACTORS

The parties are and shall remain independent contractors and nothing herein shall be deemed to cause this Agreement to create an agency, employment, partnership, or joint venture between the parties. Neither Party shall have any authority to bind the other to any matter or undertaking.

19. PERSONNEL, TAXES AND INSURANCE

Service Provider shall be solely responsible for the hiring and discharge of any personnel to be furnished hereunder, other personnel matters with respect to such

personnel, the payment of wages, benefits and other remuneration due to such personnel.

20. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties hereto with respect to the subject matter hereof and supersedes all prior letters of intent, arrangements, representations, warranties, statements, promises, information and undertakings, whether oral or written, expressed or implied, with respect to the subject matter of this Agreement.

21. AMENDMENT

This Agreement shall not be amended or supplemented, in whole or in part, except by an instrument in writing duly executed by the parties hereto, or their respective successors or permitted assigns.

22. LEGAL CONSTRUCTION & SEVERABILITY

If any term, provision, covenant or restriction of this Agreement is held by a court of competent jurisdiction to be invalid, void or unenforceable the remainder of the terms, provisions, covenants and restrictions of this Agreement shall remain in full force and effect and shall in no way be affected, impaired or invalidated unless to so continue the Agreement would unjustly prejudice the parties hereto.

23. WAIVER

No failure to enforce or insist upon strict compliance with any provision of this Agreement shall be deemed to constitute a waiver of rights to demand strict compliance with the terms hereof. No waiver of any term or condition of this Agreement shall be deemed or construed to be a waiver of such term or condition in the future, or of any subsequent breach of said term or any other terms of this Agreement.

24. SINGULAR/PLURAL

Whenever required by the context, the use of the singular form shall be deemed to include the plural, and the use of the plural form shall be deemed to include the singular.

25. SECTION HEADINGS

The Section headings contained herein are for convenience and for reference purposes only, and shall not be deemed to constitute a substantive portion hereof.

IN WITNESS WHEREOF the Parties have executed this Agreement as of the day and year first above written:

For **Bennett, Coleman & Company Limited**

Signed:
Name:
Title:
Date:

For **Service Provider**

Signed:
Name:
Title:
Date:

Exhibit No. 1

(To be reviewed after understanding the scope, rate card and related service obligations)

Assignement Description:

A. Assignment Location:

B. Assignment Duration:

C. Rates for on-location Services:

Validity of Rates:

Any other

Customer	Service Provider
Signed:	Signed:
Name:	Name:
Title:	Title:
Date:	Date:

Typical Exhibits: